

25TRCV03911 25TRCV03911

County: los-angeles

Division: Civil Law and Motion

Department: 5

Hearing date: 2026-07-08

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Case Number: 25TRCV03911 Hearing Date: July 8, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

ARDALAN OOSHANI

;

Plaintiff,

vs.

AMIN SHAD

;

Defendant.

Case

No.:

25TRCV03911

Hearing

Date:

July
8, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

DEFENDANT

AMIN SHAD'S MOTION FOR NARROW PRESERVATION, NON-INTERFERENCE, AND LIMITED
DISCLOSURE

(2)

plaintiff

Ardalan Ooshani's request for a mutual preservation order

MOVING PARTY: Defendant, Amin Shad

RESPONDING

PARTY: Plaintiff, Ardalan Ooshani

(1)

Defendant

Amin Shad's Motion for Narrow Preservation, Non-Interference, and Limited
Disclosure is DENIED.

(2)

Plaintiff

Ardalan Ooshani's Request for a Mutual Preservation Order is DENIED.

The Court considers the moving
papers filed on April 3, 2026, and April 6, 2026, the opposition brief filed on
June 26, 2026, and the reply brief filed on June 30, 2026.

BACKGROUND

Factual Background

On November 18, 2025, plaintiff Ardalan Ooshani filed the Verified Complaint ("Complaint") against defendants Amin Shad and DOES 1 through 5.

The Complaint includes the following causes of action: (1) Declaratory Relief; (2) Temporary Restraining Order (Ex Parte) and Preliminary Injunction Relief; (3) Breach of Fiduciary Relief; (4) Civil Damages; (5) Conversion and Unauthorized Control; (6) Accounting (Equitable); (7) Constructive Trust; and (8) Unjust Enrichment.

On December 29, 2025, Shad filed a Cross-Complaint against Ooshani. The Cross-Complaint includes the following causes of action: (1) Breach of Fiduciary Duty; (2) Breach of Contract (Operating Agreement and Related Obligations); (3) Conversion; (4) Violation of Penal Code § 502 (Computer Data Access and Fraud Act); (5) Intentional Interference with Prospective Economic Advantage; (6) Unfair Competition (Bus. & Prof. Code § 17200 et seq.); (7) Declaratory Relief; (8) Injunctive Relief; and (9) Financial Obligations and Damages.

LEGAL STANDARD

"A preliminary injunction may be granted at any time before judgment upon a verified complaint, or upon affidavits if the complaint in the one case, or the affidavits in the other, show satisfactorily that sufficient grounds exist therefor. No preliminary injunction shall be granted without notice to the opposing party." (Code Civ. Proc., § 527, subd. (a).)

"[A] court will deny a preliminary injunction unless there is a reasonable probability that the plaintiff will be successful on the merits, but the granting of a preliminary injunction does not amount to an adjudication of the merits." (Beehan v. Lido Isle Community Assn. (1977) 70 Cal.App.3d 858, 866.) "The function of a preliminary injunction is the preservation of the status quo until a final determination of the merits." (Ibid.)

In evaluating a party's request for a preliminary injunction, courts consider "(1) how likely it is that the moving party will prevail on the merits, and (2) the relative harm the parties will suffer in the interim due to the issuance or nonissuance of the injunction." (Dodge, Warren & Peters Ins. Services, Inc. v. Riley (2003) 105 Cal.App.4th 1414, 1420.) "[T]he greater the ... showing on one, the

less must be shown on the other to support an injunction.” (Ibid., quoting Butt v. State of California (1992) 4 Cal.4th 668, 678.) The balancing of harm between the parties also “involves consideration of such things as the inadequacy of other remedies, the degree of irreparable harm, and the necessity of preserving the status quo.” (Husain v. McDonald’s Corp. (2012) 205 Cal.App.4th 860, 867, quoting Abrams v. St. John’s Hospital & Health Center (1994) 25 Cal.App.4th 628, 636.)

The burden of proof is on the plaintiff as the moving party “to show all elements necessary to support issuance of a preliminary injunction.” (O’Connell v. Superior Court (2006) 141 Cal.App.4th 1452, 1481.)

UNTIMELY OPPOSITION

“All papers opposing a motion so noticed shall be filed with the court and a copy served on each party at least nine court days, and all reply papers at least five court days before the hearing.” (Code Civ. Proc., § 1005, subd. (b).)

Given that the motion is scheduled to be heard on July 8, 2026, Ooshani was required to file and serve an opposition brief by June 24, 2026.

However, Ooshani submitted the opposition brief on June 26, 2026, which was two court days after the deadline.

The Court has the discretion to consider an opposition brief that is filed a couple of days late, particularly when the moving party submits a reply brief. (See Cal. Rules of Court, rule 3.1300(d).) In this instance, Ooshani’s submission was only a couple of days late, and Shad submitted a timely reply brief. Given that Ooshani’s delayed brief did not cause any prejudice to Shad, the Court will exercise its discretion and consider the opposition brief.

DISCUSSION

Shad seeks the following court orders: (1) “Ooshani shall preserve all Company Microsoft 365 data, including emails, mailboxes, SharePoint and OneDrive content, and all administrative, audit, sign-in, and eDiscovery logs[.]” (2) Ooshani “shall not delete, alter, export, access beyond ordinary user-level activity, disable mailboxes, modify permissions, or initiate eDiscovery searches or exports within the Company’s Microsoft 365 environment pending

further order of the Court[;]" (3) "Given that the Temporary Restraining Order has been dissolved, and no preliminary injunction has been issued, it is appropriate and necessary for the Court to restore administrative access to [Shad], who is the managing member and 92% owner of the Company. [Ooshani] shall not retain or exercise unilateral admin control over the Company's operating and email systems. To protect the Company's confidential information and prevent undisclosed liabilities, the Court orders that [Shad] be granted administrative access sufficient to review and preserve all Company-related email accounts, communications, and company administrative systems. This access is strictly for the purposes of identifying any potential liabilities, ensuring compliance, and safeguarding trade secrets. It does not authorize operational control or impose any additional costs unless further ordered by the Court[;]" (4) Ooshani "shall not represent, directly or indirectly, that he is authorized to act for or bind the Company and shall not incur new obligations or liabilities on the Company's behalf without advance written notice to and written consent from [Shad] or further order of the Court[;]" (5) "Within five (5) court days, [Ooshani] shall disclose all Company credit cards and other financial instruments he had access to from the date the Company was registered to the present, identify all authorized users, and provide an itemized list of charges incurred on behalf of the Company, including the stated business purpose for each charge. In addition, [Ooshani] shall disclose any loans, checks, or other financial commitments made in the Company's name at any time since the Company's formation, regardless of whether they were during the TRO period or any other period of claimed managerial authority. This ensures full transparency and prevents any unknown liabilities from being imposed on" Shad; (6) "Pending further order, [Shad] shall not incur new financial obligations on behalf of the Company without advance written notice to [Shad] identifying the amount and purpose[;]" (7) Ooshani "shall not access, copy, export, disclose, or use Company confidential information or [Shad]'s trade secrets, including Company emails, attachments, customer or vendor information, pricing, [Shad]'s intellectual property, internal communications, or strategic materials, except as required for participation in this litigation through counsel[;]" and (8) "[t]his Order is issued solely to preserve evidence, prevent unilateral interference, protect confidential information, and prevent unconsented liability, and does not adjudicate the merits of the parties' claims." (Shad's Proposed Order, pp. 1:29-3:9.)

However, Shad does not provide any case law or statutes that would justify the Court granting these requests. Shad claims that "California courts possess inherent authority to issue orders necessary to preserve evidence, prevent unilateral interference, protect confidential information and trade secrets,

and maintain the status quo pending adjudication where irreparable harm would otherwise result.” (Motion, p. 3.) While the Court acknowledges its authority to issue certain orders, it will only do so if the moving party presents a legal analysis demonstrating that such orders are warranted based on the specific circumstances of the case. Shad has not sufficiently shown why the Court should grant these particular requests.

In Ooshani’s opposition brief, Ooshani requests the following order: “Each party shall preserve all Company records and electronically stored information within that party’s possession or control, including but not limited to the Company’s Microsoft 365 environment, accounting system, Slack workspace, and banking and financial records, and shall not destroy, alter, or delete such records pending further order of the Court.

This obligation applies equally to both parties and does not transfer administrative control of any system to either party.” (Ooshani’s Proposed Order, pp. 1:27-2:4.) However, Ooshani similarly fails to provide a legal analysis demonstrating why the Court should issue such an order. Therefore, the Request is DENIED.

As such, both Shad’s motion and Ooshani’s request are DENIED.

ORDERS

1) Defendant

Amin Shad’s Motion for Narrow Preservation, Non-Interference, and Limited Disclosure is DENIED.

2) Plaintiff

Ardalan Ooshani’s Request for a Mutual Preservation Order is DENIED.

3) Shad

is ordered to give notice of this Court’s ruling.

IT IS SO ORDERED.

DATED: July 8, 2026

Tamara
Hall

Judge
of the Superior Court